

Civil Service Act, 1993

Document type: act

Source: Nepal Law Commission / Ministry of Law, Justice and Parliamentary Affairs

Chunks merged: 49

Civil Service Act, 2049

Royal Seal and Date of Publication

2050.2.4

Amending Acts

1. Nepal Health Service Act, 2053 2053.11.15
2. Civil Service (First Amendment) Act, 2055 2055.3.29
3. Some Nepal Acts Amendment Act, 2057 2057.4.26
4. Parliament Secretariat Related Act, 2058 2058.8.28
5. Civil Service (Second Amendment) Act, 2064 2064.4.23
6. Republic Strengthening and Some Nepal Laws Amendment Act, 2066 2066.1.07
7. Civil Service (Third Amendment) Act, 2070 2070.12.12
8. Civil Service (Fourth Amendment) Act, 2072 2072.3.29
9. Some Nepal Acts Amendment Act, 2072 2072.11.13
10. Pension Fund Act, 2075 2075.12.4
11. Administrative Court Act, 2076 2076.6.24

Act No. 2 of the year 2050

An Act Made to Provide for the Formation, Operation and Service Conditions of the Civil Service

Preamble: Whereas it is expedient to make provisions relating to the formation, operation and service conditions of the civil service in order to make the civil service more competent, robust, service-oriented and accountable,

The Federal Parliament has enacted this Act. Parliament enacted this Act in the twenty-second year of the reign of His Majesty King Birendra Bir Bikram Shah Dev. Chapter-1

Preliminary

1. Short Title and Commencement: (1) This Act may be called the "Civil Service Act, 2049".
(2) This Act shall come into force immediately. 2. Definitions: Unless the subject or context otherwise requires, in this Act,-
 - (a) "Civil Service" means the civil service constituted pursuant to Section 3.
 - (b) "Civil Servant" means a person holding a post in the civil service.
 - (c) "Appointing Authority" means the officer authorized to make appointment pursuant to Section 9. Added by the Fourth Amendment.(ca) "Permanent Residency Permit" means the Diversity Immigrant Visa (DV), Permanent Resident Visa (PR) or Green Card provided to a Nepali citizen to reside permanently in a foreign

country, whether subject to any condition or not, and the term also denotes a permanent residency permit of any name given to a Nepali citizen to reside permanently abroad.

(d) "Family" means the spouse, son, unmarried daughter, adopted son, unmarried adopted daughter, father, mother or step-mother who lives with the civil servant and whom the civil servant himself/herself has to support, and the term also denotes Amended by the Second Amendment. the grand-father and grand-mother of a male and unmarried female employee and Added by the Second Amendment. the mother-in-law and father-in-law of a married female employee.

(e) "Departmental Head" means the officer designated as such.

(f) "Office Chief" means the chief employee of the designated office.

(g) "Permanent Post" means a post in the civil service that carries pension and for which no term is fixed.

(h) "Specialist Post" means a post having work, duties and responsibilities of a special nature and requiring special qualification.

Added by the Second Amendment.(ha) "Trade Union of Civil Servants" means the trade union of civil servants formed under sub-section (1) of Section 53. Added by the Second Amendment.(hb) "Authorized Trade Union of Civil Servants" means the authorized trade union of civil servants formed pursuant to sub-section (3) of Section 53.

(i) "Prescribed" or "as prescribed" means prescribed or as prescribed in the rules made under this Act. Chapter-2

Formation of Civil Services

Added by the First Amendment.2A. Central Body for Personnel Administration: (1) The Ministry of General Administration shall act as the central body for the formation, operation and service conditions of the civil service and the management and operation of civil servants to administer the country.

(2) Except as otherwise provided in this Act or in the rules made under this Act, no work relating to civil service personnel administration shall be done without the policy approval of the Ministry of General Administration. 3. Formation of Civil Services: The Government of Nepal shall form the following civil services:-

Amended by the First Amendment.(a) Nepal Economic Planning and Statistics Service

(b) Nepal Engineering Service

(c) Nepal Agriculture Service

(d) Nepal Judicial Service

Added by the Second Amendment.(da) Nepal Foreign Affairs Service

(e) Nepal Civil Administration Service

Added by the Second Amendment.(ea) Nepal Audit Service

(f) Nepal Forest Service

(g) Nepal Miscellaneous Service

(h) Nepal Education Service

(i)

(j) ?

Amended by the Second Amendment.4. Classes: (1) The civil service shall have the following classes:-

Gazetted Non-Gazetted

Special First

First Second

Second Third

Third Fourth

Fifth

(2) Employees working in classless posts at the time of commencement of this section, if they wish to be included in a class, such employees shall be placed in the Non-Gazetted Fifth Class as prescribed. Added by the Second Amendment.4A. Special Provision Relating to Unified Civil Service System: Notwithstanding anything contained in Section 4, the Government of Nepal shall, from a date specified by a notification published in the Nepal Gazette, convert the class system of the civil service into a level system and implement a unified civil service system. 5. Posts of Services: (1) The various classes of the civil service shall have technical and administrative posts of various levels, including specialist posts.

(2) Except as provided in sub-section (1), the civil service may also have such classless posts as prescribed.

(3) ?

Added by the Second Amendment.5A. Job Description: (1) The concerned Secretary, Departmental Head and Office Chief shall, on the basis of the job description of the organization approved by the Government of Nepal, prepare and implement a job description for each civil service post.

Such job description shall clearly specify the work, duties, responsibilities, authority and qualifications of that post. (2) When posting a civil servant to any post, the job description and the indicators for evaluating work according to the job description shall be provided along with the letter of posting. (3) Other arrangements relating to job description shall be as prescribed. Amended by the Fourth Amendment.6. Groups and Sub-groups: (1) The civil service shall have the services as per Section 3. (2) Notwithstanding anything contained in sub-section (1), for the purpose of service specialization up to the Gazetted Special Class, the services are grouped (clustered) as follows:- (a) Nepal Engineering Service, (b) Nepal Agriculture and Forest Service, (c) Nepal Judicial Service, (d) Nepal Foreign Affairs Service, (e) Nepal Civil Administration Service, and (f) Nepal Audit Service. (3) The Gazetted Special Class posts in the services under sub-section (2) shall be as prescribed. (4) The services formed under Section 3 shall have such groups and sub-groups as prescribed. (5) The minimum qualifications required for various posts in the groups and sub-groups of the services formed under Section 3 shall be as prescribed. Chapter-3 Recruitment to the Civil Service Added by the First Amendment.6A. Creation of Posts: (1) The sanctioned posts of posts in the civil service shall be created as prescribed. Amended by the Second Amendment.(2) While preparing the organizational structure for establishing a new government office, and while creating new sanctioned posts or reviewing or altering the existing organizational structure and sanctioned posts, the concerned Ministry shall conduct an organization and management survey based on the program, workload, nature of work, reasons and justification for adding posts, and available human resources, and, with the consent of the Ministry of

Finance, submit it to the Ministry of General Administration. Added by the Second Amendment.(2A) On the basis of the consent received pursuant to sub-section (2), the Ministry of General Administration shall evaluate it and submit it to the Government of Nepal, Cabinet, for approval within thirty days. Provided that, in the case of alteration of organizational structure and sanctioned posts, an organization and management survey may be conducted only for the altered organizational structure and sanctioned posts and a report submitted. (3) A post created and filled contrary to sub-sections Amended by the Second Amendment.(1), (2) and (2A) shall stand automatically abolished. Amended by the Third Amendment.7.

Recruitment to the Civil Service: (1) Recruitment to the Gazetted Special Class post of the civil service shall be as per sub-section (2) of Section 19, and to the following posts as follows:- Post By Open Competition By Evaluation of Efficiency By Internal Competitive Examination By Seniority and Performance Evaluation (a) Classless/Non-Gazetted Fifth Class 100% - - - (b) Non-Gazetted Fourth Class - - - - (c) Non-Gazetted Third Class - - - - (d) Non-Gazetted Second Class 70% - 20% 10% (e) Non-Gazetted First Class 40% 20% - 40% (f) Gazetted Third Class 70% - - 30% (g) Gazetted Second Class 10% 35% 20% 35% (h) Gazetted First Class 10% 35% 20% 35% Added by the Third Amendment.(1A) Notwithstanding anything contained in sub-section (1), in the following circumstances, vacancies shall be filled as follows:- (a) If all or some of the posts set aside for promotion by seniority and performance evaluation cannot be filled due to lack of eligible candidates, such posts for that year shall be filled by promotion by evaluation of efficiency; Provided that, if all or some of the posts of Gazetted Third Class referred to in clause (f) of sub-section (1) set aside for promotion by seniority and performance evaluation cannot be filled due to lack of eligible candidates, such posts shall be filled by open competition. (b) If all or some of the posts set aside for promotion by evaluation of efficiency cannot be filled due to lack of eligible candidates, such posts for that year shall be filled by open competitive examination. (c) All vacant posts in a service group or sub-group which does not have a post one class below shall be filled by open competition. Added by the Third Amendment.(1B) For recruitment pursuant to this section, the Public Service Commission shall determine the number of posts and publish an advertisement. (2) Bahidars or equivalent employees working in the Non-Gazetted Fourth Class at the time of commencement of this section shall, from the date of commencement of this section, stand automatically placed in the Non-Gazetted Third Class. (3) Notwithstanding anything contained in clause (c) of sub-section (1), if no civil servant is holding a Non-Gazetted Third Class post, such post shall stand automatically abolished. If a civil servant working in a Non-Gazetted Third Class post has the required service period for promotion to the next post and has attained the prescribed educational qualification for the post one class below the class of the post to be promoted, he/she shall be promoted to the post one class above.

The concerned office shall send information of the abolition of such posts to the Civil Book Depot. The work to be performed from such posts shall be performed through service contracts by fixing minimum remuneration and contracting with a person or institution.

(6) For recruitment by internal competitive examination under clause (d) of sub-section (1), recruitment shall be made by allowing competition from employees working in Non-Gazetted Third Class and classless posts who have fulfilled the minimum educational qualification and minimum service period required for the Non-Gazetted Second Class post.

(7) Notwithstanding anything contained in sub-section (1), to make the civil service inclusive, forty-five percent of the posts to be filled by open competition shall be reserved, and considering that percentage as one hundred percent, recruitment shall be made by conducting separate competitions only among the following candidates:-

- (a) Women ? Thirty-three percent
- (b) Indigenous Nationalities (Adivasi/Janajati) ? Twenty-seven percent
- (c) Madhesi ? Twenty-two percent
- (d) Dalit ? Nine percent
- (e) Persons with Disabilities ? Five percent
- (f) Backward Region ? Four percent

Explanation:

(1) For the purposes of this sub-section, "Backward Region" means the districts of Achham, Kalikot, Jajarkot, Jumla, Dolpa, Bajhang, Bajura, Mugu and Humla.

(2) For the purposes of clauses (a), (b), (c) and (d) of this sub-section, "Women, Indigenous Nationalities, Madhesi and Dalit" means women, indigenous nationalities, Madhesi and Dalit who are economically and socially backward.

(8) Notwithstanding anything contained elsewhere in this section, the percentage of posts determined under clause (e) of sub-section (7) shall be filled by competitive examination allowing competition only among persons with disabilities prescribed for a specific nature of work.

(9) While determining the percentage pursuant to sub-section (7), if the fraction is less than one percent, such fraction shall be shifted to the group immediately following the group for which the fraction arose.

(10) If suitable candidates are not available in the advertisement for the year for which the posts reserved under sub-section (7) were advertised, such posts shall be included in the advertisement of the following year, and if suitable candidates are not available even after advertising in that manner, such posts shall be included Amended by the Third Amendment. in the posts to be filled by open competition in the following year.

(11) The provision for recruitment by the percentage determined under sub-section (7) shall be reviewed every ten years.

(12) In case of any dispute in determining the number of posts according to the percentage under sub-section (7), the decision of the Public Service Commission shall be final.

(13) Notwithstanding anything contained elsewhere in this section, the Government of Nepal may, by a notification published in the Nepal Gazette, designate posts for a specific nature of work or post allowing only women to compete.

(14) Notwithstanding anything contained elsewhere in this section, for once after the commencement of this section, women candidates who have completed at least five years of temporary service in a permanent post of a women development program operated by a government agency at the time of commencement of this section and who fulfill the minimum qualification required for a post may be given permanent appointment to a prescribed post by taking a competitive examination determined by the Public Service Commission.

Added by the Fourth Amendment.(14A) For posts up to Gazetted Second Class to be filled by promotion by internal competitive examination under sub-section (1) of Section 7, all employees serving in the services under this Act, the Legislature-Parliament Secretariat Related Act, 2064, and the Nepal Health Service Act, 2053, who have fulfilled the service period and qualification prescribed for that post, shall be eligible candidates. Deleted by the Third Amendment.(15)

(16) Notwithstanding anything contained elsewhere in this section, for the Gazetted Second and First Class posts to be filled by open competition under clauses (g) and (h) of sub-section (1), the minimum qualification required shall be having obtained a Master's degree in the relevant subject and, in the case of a Gazetted Second Class post, five years of experience, and in the case of a Gazetted First Class post, seven years of experience, at the officer level in any government service or in an organized institution registered under prevailing law or an international organization or institution. Provided that, in the case of a person who has obtained a doctoral level degree, the experience period shall be reduced by two years. Added by the Third Amendment.(16A) Notwithstanding anything contained in sub-section (16), work experience on a part-time basis in any entity shall not be counted for that purpose. Explanation: For the purpose of this sub-section, "worked on a part-time basis" means work performed for less than forty hours per week.

(17) Other arrangements relating to recruitment to the civil service and arrangements relating to the filling of specialist posts shall be as prescribed. Amended by the Second Amendment.7A. Provision for Requesting Recruitment: (1) If any post of the civil service becomes vacant, the concerned agency shall give information thereof to the Public Service Commission within one month of the vacancy and inform the Ministry of General Administration thereof. The officer who fails to give information within that period shall be liable to departmental action.

(2) The details of posts that have become vacant and for which recruitment has been requested pursuant to sub-section (1) shall be published publicly each year within the month of Shrawan as prescribed.

(3) While requesting recruitment for the civil service, the request may be made by ascertaining the posts that have become vacant up to that period and the posts that will become vacant within the current fiscal year due to retirement and promotion.

(4) Other arrangements relating to requesting recruitment shall be as prescribed. Added by the First Amendment.7B.

Prohibition on Recruitment: (1) No post in the civil service shall be filled by any method other than those provided in this Act. (2) In the case of civil servants working in Ministries, Secretariats, Commissions and Departments and offices located within the Valley, salary shall not be paid without passing the salary report from the Civil Book Depot, and in the case of civil servants in district level offices, from the concerned Treasury and Comptroller Office. Amended by the Second Amendment.(3) If an employee is appointed contrary to sub-section (1), the amount of salary, allowance and other facilities received by such employee shall be recovered from the appointing officer as a government due, and if salary is paid without passing the salary report pursuant to sub-section (2), the amount paid shall be recovered from the officer making such payment as a government due. Provided that this sub-section shall not be deemed to prevent paying salary to an employee who has been declared surplus. Explanation: For the purpose of this sub-section, "employee declared surplus" means an employee whose organization or post has been abolished and who has not yet been adjusted to another organization or post. Added by the First Amendment.7C. Prohibition on Appointment on Wage Basis or Contract: (1) After the commencement of this Act, no one shall appoint any person on a wage basis or contract for work that is required to be done by a civil servant. (2) If anyone appoints a person contrary to sub-section (1), the amount of salary, allowance and other facilities received by the person so appointed shall be recovered from the appointing officer as a government due. 8. Appointment to be Made on the Recommendation of the Public Service Commission: (1) Appointment to posts to be filled by open competition or internal competition Deleted by the Second Amendment shall be made on the recommendation of the Public Service Commission. (2)Deleted by the Some Nepal Acts Amendment Act,

2072 9. Appointment to Posts of the Civil Service: (1) The Government of Nepal shall appoint to the Gazetted posts of the civil service, and notice of such appointment shall be published in the Nepal Gazette. (2) The Departmental Head may appoint to the Non-Gazetted posts of the civil service. (3) Notwithstanding anything contained in sub-section (2), the Office Chief may appoint to the Gazetted and classless posts of his/her office and subordinate offices. 10.

Disqualification for Being a Candidate: (1) The following persons shall not be eligible to be candidates for a post in the civil service:- (a) Those who have not completed 18 years of age for Non-Gazetted and classless posts, (b) Those who have not completed 21 years of age for Gazetted posts, (c) In the case of male candidates, those who have completed 35 years of age, and in the case of female candidates, those who have completed 40 years of age, Provided that, (1) Any person not exceeding forty years of age may be a candidate for a post in the civil service designated for the appointment of ex-servicemen or ex-police Deleted by the Second Amendment . Amended by the Second Amendment.(2) Persons not exceeding forty-five years of age may be candidates for open competition for Gazetted Second and First Class posts. (3) The age limit for candidates shall not apply in the case of permanent serving employees of the civil service. Added by the Third Amendment.(4) Persons with disabilities prescribed pursuant to sub-section (8) of Section 7 may be candidates up to the age of forty years. (d) Those who have been dismissed from service in a manner that renders them disqualified for government service in the future, (e) Non-Nepali citizens, (f) Those convicted by a court on a criminal charge involving moral turpitude. Amended by the Second Amendment.(2) In the case of female employees who have been continuously serving for at least five years on a temporary appointment in a development plan or development post of the Government of Nepal, the age bar shall not apply to be a candidate in the advertisement of the Public Service Commission for open competition. 11.

Provision Relating to Temporary Appointment: (1) The Public Service Commission shall publish a separate list according to the order of merit for the purpose of making temporary appointments from among the candidates who have not been recommended for permanent appointment in the examinations conducted by it. (2) If it is necessary to make a temporary appointment to a vacant post in the civil service, the concerned Ministry shall write to the Public Service Commission. (3) Upon receiving such written request under sub-section (2), the Public Service Commission shall, on the basis of the demand of the concerned Ministry, recommend the name of the person on the list of order of merit for temporary appointment and send it. (4) The concerned Ministry shall make a temporary appointment of the person recommended under sub-section (3) for a maximum period of 6 months. (5) The concerned Ministry shall inform the Ministry of General Administration of the temporary appointment made under sub-section (4) within seven days. (6) If anyone makes a temporary appointment contrary to this section, the amount of salary, allowance and other facilities received by the civil servant so appointed shall be recovered from the appointing officer as a government due. 12. Incumbent to Remain: In the following circumstances, the civil servant shall remain the incumbent of his/her post above:- (a) As long as he/she continues to work in that post. (b) Until the period allowed to assume charge after transfer to another post. (c) During the period of leave. (d) During the period of suspension. (e) When detailed by the Government of Nepal or for non-governmental work, or when working on an acting basis in any other post. 13. Acting Arrangement: Amended by the Second Amendment.(1) If the post of any Departmental Head or Office Chief becomes vacant, or if the serving employee in such post goes on leave for more than fifteen days, or is under action pursuant to prevailing law, a civil servant of the same level or of a post one class below who is an eligible candidate for promotion may be appointed as acting for a maximum period of six months in order to immediately carry on the work of that post. After an acting appointment has been made to a post in this way, the same or another person shall not be again appointed as acting to that post. (2) If an employee is appointed as acting contrary to sub-section (1), the amount of

salary, allowance and other facilities received by him/her while in that post shall be recovered from the officer making the acting appointment as a government due. 14.

Taking Oath: Every civil servant, before assuming charge of his/her office for the first time after appointment, shall take an oath as prescribed. Amended by the Second Amendment.15. Posting of Civil Servants: (1) Posting of a civil servant shall be done on the basis of his/her educational qualification, training and experience. Provided that, posting to the post of Departmental Head of Gazetted First Class shall be done with the consent of the Ministry of General Administration. While giving consent for posting to such post, the Ministry of General Administration shall, in coordination with the concerned Ministry, provide consent to the employee who has the ability to bear leadership in that post, in addition to the matters mentioned above. (2) When posting or transferring any civil servant to a designated post of Departmental Head, Office Chief or other post, the Government of Nepal may, subject to the job description according to the administrative work nature of the duties to be performed in that post, make a performance agreement with the concerned officer and effect the posting or transfer. (3) For the post of Secretary of Special Class of the Government of Nepal or equivalent post and the post of Departmental Head of a central agency, a special post may be automatically created for a period of up to fifteen days for the purpose of working alongside the serving incumbent and handing over/taking over, and posting may be effected before the serving incumbent retires. (4) Other arrangements relating to posting shall be as prescribed. Amended by the Second Amendment.16. Probation Period: A new appointment to a permanent post in the civil service shall be made with a probation period of six months for female employees and one year for male employees. If the work of the employee during the probation period is not satisfactory, his/her appointment may be revoked. The appointment of a civil servant whose appointment is not so revoked shall be deemed to have been automatically confirmed after the expiry of the probation period. Provided that, if an employee who has once been permanently appointed to a post in the civil service and has completed the probation period is appointed permanently to another post in the civil service and joins, such employee shall not be placed on probation again. Explanation: For the purposes of the proviso (3) of clause (c) of sub-section (1) of Section 10 and this section, "Civil Service" shall also mean the Parliament Service and the Nepal Health Service. 17. Term of Chief Secretary and Secretary: The term of office of the Chief Secretary and the Secretary shall be three years and five years respectively. Proviso deleted by the First Amendment.

Explanation: For the purpose of this section, "Secretary" means a civil servant holding any post of the Special Class. Chapter-4 Transfer and Promotion Amended by the Second Amendment.18. Power to Transfer: (1) Civil servants shall be transferred pursuant to sub-section (3) in order to provide them with experience of different geographical regions of the country, and the authority to make such transfer shall vest in the Appointing Authority. Provided that, (a) The Ministry of General Administration shall transfer a civil servant of one Ministry or subordinate Department or office to another Ministry and subordinate Department or office. (b) The Office of the Auditor General shall transfer employees of the Administration Service and the Accounts Group. (2) Notwithstanding anything contained elsewhere in this section, transfer or posting of employees of the Gazetted Special Class shall be made by the Government of Nepal on the recommendation of a committee consisting of the Chief Secretary of the Government of Nepal and the Secretary of the Ministry of General Administration as members, chaired by the Minister for General Administration. In the event a recommendation is required for the transfer of the Secretary of the Ministry of General Administration as well, the Secretary of the Office of the Prime Minister and Council of Ministers shall participate in the meeting of that committee as a member instead of the Secretary of the Ministry of General Administration.

Added by the Fourth Amendment.(2A) Notwithstanding anything contained in sub-section (2), an employee

working in a post of the Special Class of a service referred to in sub-section (2) of Section 6 may be transferred only to a post of the Special Class of that same service.

(3) When transferring a civil servant other than a civil servant holding a post requiring specialized service and for whom there is no post of his/her service, group or sub-group and office elsewhere at the local level, and an employee of the Special Class and Gazetted First Class, the concerned Appointing Authority shall, ordinarily once a year according to a schedule as prescribed, make the transfer by specifying the period in the transfer letter as follows:

(a) An employee who has worked for at least one and a half years in an office of a geographical area of class "A" or "B" shall be transferred to an office of a geographical area of class "D" or "C" for at least two years.

(b) An employee who has worked for at least two years in an office of a geographical area of class "C" or "D" shall be transferred to an office of a geographical area of class "B" or "A" for at least two years. Explanation: For the purpose of this section, "one year" means a period of at least two hundred and thirty-three days of attendance.

(4) Notwithstanding anything contained in sub-section (3), in the following circumstances, a civil servant may be transferred before the expiry of the period specified in his/her transfer letter with the consent of the Ministry of General Administration:

(a) If a medical board designated by the Government of Nepal recommends that a civil servant working at a place has become incapacitated and his/her treatment cannot be provided at that place,

(b) If it is necessary to assign special responsibility to a civil servant,

(c) If it is necessary to take departmental action against a civil servant,

(d) If it is not appropriate to keep a civil servant in the office where he/she is working,

(e) If a post of the civil service is abolished and the employee working in that post becomes surplus and cannot be adjusted in any other office located in the same district,

(f) To effect a home district transfer for Non-Gazetted civil servants.

Added by the Third Amendment. Provided that, no employee who has been recommended by the Public Service Commission or Promotion Committee for a Non-Gazetted post, or whose first posting to a Gazetted post has been made on the recommendation of the Public Service Commission or Promotion Committee, shall be transferred before the expiry of the period under sub-section (3) from the office where he/she was first posted.

(5) While making transfers pursuant to this section, if both husband and wife are in government service, they shall, as far as possible, be sent to the same district considering vacant posts for employees working in the Non-Gazetted class of the civil service.

(6) If there is no office with a post of the concerned service, group or sub-group in the geographical area to which transfer is required to be made under sub-section (3), or if the service period of the employee working in the post of the office of the geographical area to which transfer is to be made has not been completed, the transfer may be made to an office in the geographical area next in the order of transfer.

(7) Notwithstanding anything contained elsewhere in this section, a Non-Gazetted civil servant appointed after the commencement of this sub-section shall not be transferred outside the zone for which he/she was

recommended by the Public Service Commission, except to offices within that zone, Amended by the Fourth Amendment. for five years. Added by the Third Amendment. Provided that, an employee recommended for a Non-Gazetted First Class post may, after serving the period under sub-section (3) in the office for which he/she was recommended, be transferred within that development region.

(8) If a civil servant is transferred before the expiry of the period under this section due to circumstances other than those mentioned in clause (c) of sub-section (4), such employee shall be given an amount as prescribed for setting up at the new place.

Provided that, no such amount shall be given if the transfer is made at the employee's own request, or if the transfer is from one agency within the Kathmandu Valley to another agency within the Kathmandu Valley, or from one office within the district headquarters of the same district to another office within the district headquarters of that district, or if the transfer is for a post whose term is not specified.

(9) Notwithstanding anything contained elsewhere in this Act, if an employee on study leave, or under automatic suspension, or on any other leave for a period exceeding six months, or detailed on deputation for a period exceeding three months, or detailed for specific work or for implementing a specific project, holds the post of a district level office or holds the post of Office Chief or Departmental Head, the post of such employee may be shifted to a central level agency for the duration of that period, by creating a special post after obtaining the consent of the Ministry of General Administration.

(10) Notwithstanding anything contained in clauses (a) and (b) of sub-section (3), the Ministry of General Administration may transfer a civil servant of a Ministry and its subordinate Department or office to another Ministry and its subordinate Department or office. Amended by the Third Amendment. (11) Notwithstanding anything contained in sub-section (4), except in the circumstances of clauses (c), (d) or (e) of that sub-section, a Non-Gazetted or classless employee shall not be transferred before the completion of the period under sub-section (3) without a voluntary application submitted by the concerned employee himself/herself.

(12) The Appointing Authority shall take departmental action against the officer making a transfer contrary to this section, and the Ministry of General Administration shall cancel such transfer. If the transfer is made by the Ministry of General Administration, the Government of Nepal, Cabinet, shall cancel it.

(13) Other arrangements relating to transfer shall be as prescribed. Added by the First Amendment. 18A. Provision Relating to Deputation: (1) A civil servant may be detailed on deputation to another place only for the work of the same entity from the Ministry, Secretariat, Commission, Department or office where he/she is working. While detailing on deputation in this manner, he/she shall not be detailed on deputation for a period exceeding three months in one year. Provided that, he/she may be detailed on deputation for a longer period for training, seminar, etc.

Amended by the Second Amendment. (2) When detailing any civil servant on deputation to an entity that is not a post of the civil service and to an approved temporary post, or when recalling from deputation before the expiry of the deputation period, the consent of the Ministry of General Administration shall be obtained. The period of such deputation shall not exceed one year at a time. Provided that, it shall not be necessary to obtain the consent of the Ministry of General Administration for detailing a Non-Gazetted employee on deputation. Added by the Second Amendment. (2A) If it is necessary to detail an employee on deputation for up to one year at a time for work such as election, census, survey teams, mineral survey, and for work of commissions and committees of a permanent nature, the deputing agency shall obtain the consent of the

concerned agency and the Ministry of General Administration and detail on deputation. Added by the Second Amendment.(2B) Notwithstanding anything contained elsewhere in this section, an employee working as the Departmental Head or Office Chief of any office shall not be detailed on deputation to another project or agency while retaining the post of that position. Added by the Second Amendment.(2C) Notwithstanding anything contained elsewhere in this section, the Ministry of General Administration may detail an employee having a post in the additional group (3) A special post shall be automatically created for promotion pursuant to sub-section (1) or (2), and such post shall be automatically abolished after the civil servant retires from service. Added by the Second Amendment. (4) Notwithstanding anything elsewhere written in this section, if a civil servant who has completed the period pursuant to this section in the same post dies, the family of such employee shall be provided with facilities including pension of a post one grade higher. Added by the Second Amendment. (5) Notwithstanding anything elsewhere written in this section, if a civil servant of the first class gazetted and second class gazetted who has served in the same post for at least fifteen years wishes to retire upon promotion, such employee shall be promoted to one grade higher and retired. 21.

Minimum Service Period and Educational Qualification Required to be a Candidate for Promotion: Added by the Second Amendment. (1) To be a candidate for promotion, one must have the educational qualification prescribed for the post one grade lower than the grade of the post for promotion and the minimum service period as follows: (a) For a non-gazetted post, three years, (b) For a gazetted post, five years. (2) Notwithstanding anything written in sub-section (1), Added by the Second Amendment. civil servants who are women, indigenous/nationalities, Madhesi, Dalit, persons with disabilities, and those having permanent residence in backward areas shall be potential candidates for promotion even if their service period is one year less than the specified service period. 22. Ineligibility to be a Potential Candidate for Promotion: Notwithstanding anything written in section 21, a civil servant shall not be a potential candidate for promotion under the following circumstances for the following periods: (a) If suspended, for the duration of the suspension, (b) If promotion is withheld, for the duration of the withholding, (c) If salary increment is withheld, for the duration of the withholding. Added by the Second Amendment. (d) If an employee has changed service or group pursuant to section 26, for a period of three years from the date of such service or group change, and if the service or group change was made upon own application, for a period of five years from the date of such service or group change. Added by the First Amendment. 22a. Withholding and Revocation of Promotion Appointment: If, after a civil servant has been recommended for promotion but before receiving the promotion appointment, the employee is suspended or promotion is withheld or salary increment is withheld, the promotion appointment of such employee shall be withheld for the said period; and if the employee is acquitted from suspension or after the withholding period ends, the employee shall be considered as not suspended or withheld and appointment shall be granted, with seniority only being maintained. Repealed by the First Amendment. 23. Amended by the Second Amendment. 24.

Basis for Promotion Based on Work Performance: (1) The Promotion Committee shall recommend for promotion based on the total marks obtained by a civil servant for work performance. (2) When evaluating the work performance of a civil servant, a maximum of one hundred marks shall be given as follows: (a) For performance evaluation ? forty marks (b) For seniority ? thirty marks (c) For educational qualification ? twelve marks (d) For working in geographical areas ? sixteen marks (e) For training ? two marks (3) When calculating marks for performance evaluation of a potential candidate, the calculation shall be made based on the account up to the end of Ashadh month, and for calculation of other marks, the marks obtained up to the final deadline for submitting the promotion application shall be calculated. Added by the First Amendment. 24a. Performance Evaluation: (1) For evaluating the performance of a civil servant, a performance evaluation form as prescribed shall be used. (2) The division of total marks for the performance evaluation of a civil

servant shall be as follows: (a) Maximum twenty-five marks that the supervisor may give (b) Maximum ten marks that the reviewer may give (c) Maximum five marks that the review committee may give (3) The supervisor, reviewer, and review committee, when awarding marks for the performance of civil servants, must do so in accordance with the basis mentioned in this section and the performance evaluation form. Amended by the Second Amendment. (4) The performance evaluation of a gazetted civil servant shall be done semi-annually and annually, and for non-gazetted employees, annually. Amended by the Second Amendment. (5) When conducting a performance evaluation semi-annually pursuant to sub-section (4), within seven days of the end of that period, the concerned gazetted employee shall fill in two copies of the form in the prescribed format, stating the assigned tasks, completed tasks, any tasks not completed and the reasons therefor, and submit them to the supervisor. The supervisor, after evaluation, must provide feedback, mentioning it in the designated place on the form, and return one copy to the concerned employee within another seven days. When conducting an annual performance evaluation, the basis of each semi-annual performance evaluation form filled shall also be taken. The authority may initiate departmental action against an employee who does not fill the semi-annual performance evaluation form within the specified time and a supervisor who does not check it and provide feedback.

Amended by the Second Amendment. (6) In the case of non-gazetted employees whose performance evaluation is to be done annually, the concerned office chief and departmental chief shall conduct or cause to be conducted the evaluation within the prescribed period, prepare three copies thereof, send one copy to the Public Service Commission, one copy to the secretariat of the Promotion Committee, and keep another copy in the concerned office. If an employee who has worked in more than one office in a year is transferred and comes with clearance, the employee must obtain a performance evaluation form filled by the concerned supervisor in the prescribed format and bring it along. The supervisor conducting the annual performance evaluation must also take into account the evaluation of the supervisor of the previous office so obtained. In the case of a gazetted civil servant, the secretary of the concerned ministry, secretariat, commission, or central body shall conduct or cause to be conducted the evaluation within the prescribed period, prepare three copies thereof, send one copy to the Public Service Commission and one copy to the secretariat of the Promotion Committee, and keep another copy in the concerned ministry, secretariat, commission, or central body. Each body conducting performance evaluation must, within seven days, publish on the notice board of its office a notice with the list of names for whom it has sent the evaluated form to the body where the form must be submitted within the prescribed period. Added by the Second Amendment. (6a) Every civil servant must fill in their performance evaluation form and register it in the concerned office within the prescribed time limit. If unable to register within such period, the concerned employee may submit an application for extension with a reasonable cause, and if the supervisor finds the cause mentioned in the application reasonable, an extension of up to fifteen days from the date of expiry of the prescribed time limit may be granted. If the performance evaluation form is registered within that extended period but within the same fiscal year, the review committee shall deduct one mark from the total marks obtained for evaluation. Provided that if a civil servant has to go on official duty for foreign training, seminar, study tour, etc., during the period for filling the performance evaluation form, the employee must fill in and register the performance evaluation form in the concerned office before such departure.

The performance evaluation form so registered shall be considered as registered within the stipulated time and shall be evaluated accordingly. Added by the Second Amendment. (6b) Departmental action shall be taken against the officer who fails to evaluate within the prescribed period the performance evaluation form duly filled and registered by the civil servant in time. Added by the Second Amendment. (6c) After the annual performance evaluation conducted each year has been completed by the review committee, the secretariat of

the review committee must inform the concerned employee of the total marks obtained in the performance evaluation for that year if the employee requests by application. Provided that the marks given by the review committee shall not be disclosed. Added by the Second Amendment. (6d) If any employee is not satisfied with the evaluation made by the supervisor and the reviewer after obtaining information pursuant to sub-section (6c), the employee may lodge a complaint with the officer as prescribed within seven days, stating concrete grounds and reasons therefor. Upon such complaint, the said officer shall consult with the concerned supervisor and reviewer and conduct necessary investigation, and if considered necessary, may amend the marks obtained in such evaluation form as prescribed. (7) If the supervisor or reviewer gives more than 95 percent or less than 75 percent marks for the annual performance evaluation, the clear reason therefor must be stated, and if less than 75 percent marks are given, the concerned employee must be informed, and if the employee provides feedback, that shall also be kept and submitted to the review committee. If the review committee is not satisfied with the evaluation of the supervisor or reviewer or both in the performance evaluation, it may return it stating clear reasons therefor. Upon such return, the concerned evaluator must re-evaluate or, if no amendment to the previous evaluation is necessary, send it back with a justifiable reason. (8) For the purpose of performance evaluation, when calculating marks, the calculation shall be made based on the average of the performance evaluation forms of the most recent years equal to the number of years of service required to be a potential candidate for promotion.

Provided that,

Amended by the Second Amendment. (1) In case of going on study or training or being suspended and the suspension is revoked, if a performance evaluation is available for the period immediately prior to such study or training or suspension, the marks for that year shall be calculated, and if no such performance evaluation is available, the marks obtained in the performance evaluation filled after rejoining shall be calculated in the same proportion. Amended by the Second Amendment. (2) The period spent on extraordinary leave shall be deducted and only then shall the potential candidacy be calculated, and no performance evaluation form shall be filled for such leave period. When calculating marks for the purpose of performance evaluation of an employee who has taken extraordinary leave, the period of extraordinary leave shall be deducted, and the marks for the performance evaluation of the years before or after such period required for promotion shall be calculated. Removed by the Second Amendment. (9)

(10) Other provisions relating to performance evaluation shall be as prescribed. Amended by the Second Amendment. 24b. Evaluation of Seniority: When awarding marks for seniority to a civil servant, for working in the currently held grade as follows, a maximum of thirty marks shall be given at the following rates:

(a) For working in posts of non-gazetted third and second class, at the rate of 3.75 marks per year,

(b) For working in a post of non-gazetted first class, at the rate of 3 marks per year,

(c) For working in posts of gazetted third and second class, at the rate of 2.5 marks per year. Provided that,

(1) When calculating marks for seniority, for months or days exceeding one year, marks shall be given on a pro rata basis.

(2) For the purpose of this section, no marks shall be given for the period of absence or extraordinary leave. Amended by the Second Amendment. 24c.

Classification of Geographical Areas: (1) When awarding marks for the experience of working in various geographical areas to a civil servant, the various geographical areas of the country shall be classified into

four categories, namely "Ka", "Kha", "Ga", and "Gha", and for experience of working in one or more of these categories in the following posts, marks shall be given as follows, not exceeding sixteen marks: (a) For posts of non-gazetted third and second class,- (1) For each year worked in category "Ka", at the rate of 4.00 marks, (2) For each year worked in category "Kha", at the rate of 3.25 marks, (3) For each year worked in category "Ga", at the rate of 2.50 marks, (4) For each year worked in category "Gha", at the rate of 2.00 marks. (b) For posts of non-gazetted first class,- (1) For each year worked in category "Ka", at the rate of 4.00 marks, (2) For each year worked in category "Kha", at the rate of 3.25 marks, (3) For each year worked in category "Ga", at the rate of 2.50 marks, (4) For each year worked in category "Gha", at the rate of 1.50 marks. (c) For posts of gazetted third and second class,- (1) For each year worked in category "Ka", at the rate of 4.00 marks, (2) For each year worked in category "Kha", at the rate of 3.25 marks, (3) For each year worked in category "Ga", at the rate of 2.50 marks, (4) For each year worked in category "Gha", at the rate of 1.25 marks. (2) Notwithstanding anything written in sub-section (1), the marks already obtained by an employee for geographical areas at the time of commencement of this section shall not be reduced. (3) For the purpose of sub-section (1), the details of the various geographical areas shall be as prescribed. (4) If an employee has not been present and reported for duty for at least two hundred thirty-three days in a particular geographical area, marks for that geographical area shall not be obtained. For a period exceeding two hundred thirty-three days, marks for that same geographical area shall be given on a pro rata basis, and for a period less than that, regardless of which geographical area the employee worked in, marks equivalent to category "Gha" shall be given.

The marks for working in a geographical area shall be calculated only if obtained while serving in a post one grade lower than the grade for which promotion is to be made. (5) An employee working in a Nepali diplomatic mission or any other office abroad shall be given marks equivalent to category "Gha", and a civil servant going on study leave or foreign training on official duty shall be given half the marks prescribed for category "Gha". Added by the First Amendment. 24d. Evaluation of Educational Qualification and Training: Amended by the Third Amendment. (1) When awarding marks for educational qualification to a civil servant, a lump sum of nine marks shall be given for the minimum educational qualification required to enter any post in the civil service, and a lump sum of three marks shall be given for one additional educational degree in a subject related to the service, group, or sub-group higher than the minimum educational qualification prescribed for service entry. Even if only a higher educational degree than the minimum educational qualification required for service entry is obtained, both marks of the same value shall be given. Removed by the Second Amendment. (2) Amended by the Second Amendment. (3) Except for the minimum educational qualification determined for the posts of gazetted second and first class to be filled by open competition pursuant to clauses (cha) and (ja) of sub-section (1) of section 7, for promotion to a post higher than gazetted second class, the minimum educational qualification determined for service entry into gazetted third class shall also be considered the minimum educational qualification. Removed by the Second Amendment. (4) Amended by the Second Amendment. (5) For in-service training, 2 marks shall be given for first class, 1.75 marks for second class, and 1.5 marks for third class. (6) When awarding marks for training to a civil servant, marks shall be given for in-service training on a subject related to the service of a duration of one month or more. When calculating marks for training, the marks for the grade in which the employee was nominated for training shall be calculated only for that grade. Added by the Second Amendment. Explanation: "One month training" means training related to service of a duration of thirty working days or more. (7) A civil servant must submit certified copies of educational qualification and in-service training. If not submitted, marks therefor shall not be given.

Added by the Second Amendment. (8) Whether the educational qualification submitted with the application

for promotion purposes by a civil servant is related to that service, group, or sub-group shall be decided by the relevant determination committee as prescribed. If the determination of the relevance of the educational qualification submitted with the application for promotion purposes is made by a date prior to the meeting of the Promotion Committee, the marks for such educational qualification shall be calculated for promotion. Added by the Second Amendment. (9) Subject to this section, the provisions regarding the training institution and the level of training shall be as prescribed by the Ministry of General Administration in coordination with the ministry operating the service, group, or sub-group. Repealed by the Third Amendment effective from Chaitra 29, 2070. 24d1. Added by the Third Amendment. 24d1a. Promotion by Seniority and Performance Evaluation: (1) Notwithstanding anything written elsewhere in this Act, when the Promotion Committee recommends for promotion based on seniority and performance evaluation, the candidate with the longest service period in the post one grade lower than the post for promotion shall be recommended for promotion on the following basis: (a) Having obtained ninety-five percent or more marks in the average of the performance evaluation of the most recent years equal to the number of years of service required to be a potential candidate for promotion, (b) For a non-gazetted first class post, having at least S.L.C. or equivalent educational qualification, (c) For a gazetted post, having the following qualifications: (1) For gazetted second class or higher posts, having at least a bachelor's degree or equivalent in a subject related to the concerned service, group, or sub-group, and for gazetted third class posts, having at least a certificate level or equivalent in a subject related to the concerned service, group, or sub-group, (2) Having undergone in-service training of one month or more in a subject related to the concerned service, group, or sub-group while serving in a post one grade lower than the post for promotion, (3) Having obtained full marks for working in a geographical area in the currently held grade pursuant to section 24c.

Provided that if there is no potential candidate who has obtained full marks for working in a geographical area, or if the number of potential candidates is insufficient for the identified vacant posts, then an employee who has not obtained full marks for working in a geographical area may also be considered a potential candidate and promoted to such post.

(2) Notwithstanding anything written in sub-section (1), when the Promotion Committee recommends for promotion based on seniority and performance evaluation pursuant to clause (gha) of sub-section (1) of section 7, the recommendation for promotion shall be made on the following basis:

(a) Having obtained ninety-five percent or more marks in the average of the performance evaluation of the last three years,

(b) Having obtained the minimum educational qualification prescribed for non-gazetted second class of the concerned service, group, or sub-group, and

(c) For candidates recruited in a non-classified post or a non-gazetted fifth class post, having a total service period of at least twenty years, counting also the service period in the non-classified post, and having the longest service period among such candidates.

(3) If a potential candidate as per the proviso to sub-clause (3) of clause (c) of sub-section (1) is promoted, the seniority of such employee shall be fixed after other employees promoted pursuant to that sub-section.

(4) When making promotions pursuant to this Act, after completing the promotion process pursuant to this section and making recommendations, recommendations for promotion by performance evaluation shall be made. Added by the Third Amendment. 24d1b.

Provisions Relating to Adjustment of Employees Promoted through Evaluation of Performance and

Experience: (1) For the adjustment of employees promoted through evaluation of performance and experience before the commencement of this section, the ministry operating the service, group, or sub-group shall create bridge posts in the concerned ministry, secretariat, or commission within one month from the date of commencement of this section and adjust and post the employees thus promoted or to be promoted to such posts. (2) For the adjustment of employees for whom applications have been called for promotion through evaluation of performance and experience before the commencement of this section and who are yet to receive promotion appointment, and employees who will be promoted through evaluation of performance and experience within one year from the date of commencement of this section after applications are called, the ministry operating the service, group, or sub-group shall create bridge posts in the concerned ministry, secretariat, or commission and adjust and post the employees thus promoted or to be promoted to such posts. (3) Notwithstanding anything written in sub-sections (1) and (2), if the employees thus promoted or to be promoted are working in a body that does not have a civil service post, bridge posts shall be created in the body having a post for such employee and the employee shall be adjusted and posted to such post. (4) After adjustment and posting pursuant to sub-sections (1), (2), and (3), the post held by them prior to promotion shall be automatically abolished. (5) Within two months of adjustment and posting pursuant to sub-sections (1), (2), and (3), the concerned ministry, secretariat, or commission shall review the existing organizational structure and posts, determine the level upgradation and additional posts required for the adjustment of employees promoted or to be promoted through evaluation of performance and experience, and send the same to the Ministry of General Administration for approval.

The details so sent shall include the existing posts, details of employees promoted or to be promoted through evaluation of performance and experience, and details of posts that can be adjusted after restructuring.

(6) After receiving the details pursuant to sub-section (5), the Ministry of General Administration shall analyze them and approve the posts deemed appropriate within one month.

(7) After posts are approved pursuant to sub-section (6), the revised post details shall be updated from the Civil Book Office.

(8) After the post details are updated from the Civil Book Office pursuant to sub-section (7), the ministry operating the service, group, and sub-group shall cause the determination of the order of preference and choice of employees falling in the higher merit order from among the merit list prepared pursuant to sub-section (9) and post them to the posts approved pursuant to sub-section (6).

(9) For the purpose of sub-section (8), the ministry operating the service, group, or sub-group shall prepare and maintain a merit list of employees promoted through evaluation of performance and experience in the concerned service, group, or sub-group. While preparing such merit list, it shall be prepared on the following basis:

(a) Based on the date on which seniority became applicable in the currently held grade post,

(b) If seniority is not determined under clause (a), based on the date of the decision of appointment or promotion to a post one grade lower,

(c) If seniority is not determined under clauses (a) and (b), based on the merit order of the recommendation of the Public Service Commission or Promotion Committee for a post one grade lower,

(d) If seniority is not determined under clauses (a), (b), and (c), based on age seniority.

(10) After posting pursuant to sub-section (8), such bridge posts shall be automatically abolished.

(11) Notwithstanding anything written elsewhere in this Act, employees in bridge posts pursuant to sub-sections (1), (2), and (3) shall not be transferred elsewhere until posted pursuant to sub-section (8).

(12) Notwithstanding anything written elsewhere in this Act, no employee shall be transferred or assigned on official duty elsewhere without completing the period pursuant to sub-section (3) of section 18 in the office where posted pursuant to sub-section (8).

Provided that there shall be no bar to transferring or assigning on official duty to a vacant post pursuant to this section employees who have received additional financial assistance from the Government of Nepal, those recommended as ill by a Medical Board constituted by the Government of Nepal, those who have obtained disability certificates of category "Ka" and "Kha", employees who wish to go to local bodies and other remote places after posting, employees suffering from serious diseases, employees residing in accessible areas for treatment of serious illness of spouse, employees in special circumstances, women who are menstruating, pregnant, or unable to go elsewhere due to domestic reasons, and employees with two years or less remaining for retirement, with the consent of the Ministry of General Administration.

(13) Notwithstanding anything written elsewhere in this section, the adjustment and posting pursuant to this section shall not adversely affect the provision of filling vacancies other than the posts created pursuant to this section under sub-section (1) of section 7. Added by the Second Amendment. 24d. Provisions Relating to Level Upgradation of Non-Classified Employees: (1) The levels of non-classified posts shall be as follows:

(a) First Level

(b) Second Level

(c) Third Level

(d) Fourth Level

(e) Fifth Level

(2) A civil servant initially appointed to a non-classified post shall have the first level.

(3) For a non-classified employee who has no record of punishment pursuant to section 18d, the authority shall upgrade the level as follows:

(a) For those with a service period of five years or more but less than ten years, to the second level,

(b) For those with a service period of ten years or more but less than fifteen years, to the third level,

(c) For those with a service period of fifteen years or more but less than twenty years, to the fourth level,

(d) For those with a service period of twenty years or more, to the fifth level.

(4) The salary scale according to the level under sub-section (3) shall be as prescribed by the Government of Nepal.

(5) Other provisions relating to level upgradation shall be as prescribed. Amended by the Second Amendment. 24e. Maintenance of Personal Details: (1) The responsibility for maintaining accurate personal details of a civil servant working in the office where the employee is posted shall lie with the concerned departmental chief or office chief.

The duty of updating or causing to be updated one's personal details shall lie with the concerned employee.

(2) If a civil servant who has become a potential candidate for promotion is abroad for government work, study, or official duty, or is unable to submit the application form due to natural calamity or circumstances beyond control, the concerned departmental chief or office chief shall send the details of such employee within the deadline of the promotion notice to the office publishing the promotion notice. The Promotion Committee shall finalize the promotion proceedings based on the details so sent. (3) If it is proved that a candidate submitted false details while filling the promotion application form, such candidate shall be subjected to departmental punishment. Added by the First Amendment. 24f. Appeal Regarding Promotion: (1) A concerned civil servant who is not satisfied with the promotion recommendation made by the Promotion Committee pursuant to section 20 may file an appeal with the Public Service Commission within thirty-five days from the date of such recommendation, and such appeal so filed shall be settled within sixty days from the date the appeal filing deadline expires. (2) After the appeals filed pursuant to sub-section (1) are settled, if the previously published promotion list needs to be amended, the officer hearing the appeal shall give notice thereof to the Promotion Committee. (3) If, during investigation of an appeal pursuant to sub-section (1), it is found that a wilfully erroneous evaluation was made, the Public Service Commission may warn the evaluator. (4) If an appeal filed pursuant to sub-section (1) is found to be false, in the promotion subsequent to the appeal, 2 marks shall be deducted if it is the first appeal of such appellant, and 3 marks shall be deducted if it is the second appeal. (5) Notice of the action taken pursuant to sub-section (3) or (4) shall be sent to the concerned employee, the secretariat of the Promotion Committee, and the office where the concerned employee is working. (6) Other provisions relating to appeals regarding promotion shall be as prescribed. 25. Amendment of Conditions for Promotion: When making any amendment to sections 21, 22, Amended by the First Amendment. 24, 24a, 24b, 24c, 24d, or the rules made thereunder, provision shall be made so that such amendment shall come into effect only from the date one year after such amendment. Amended by the Second Amendment. 26.

Change of Service, Group, or Sub-Group: If the Government of Nepal requires an employee with specific qualifications for a certain grade of a certain service, group, or sub-group in the civil service, and such requirement cannot be met through transfer or promotion from within that service, group, or sub-group, and it is necessary to fill the post by changing service from another civil service, group, or sub-group, the Government of Nepal shall make a request to that effect and send it to the Public Service Commission. The Government of Nepal shall change the service, group, or sub-group of civil servants selected through competitive examination among civil servants of the same grade with the qualifications specified in the advertisement published by the Public Service Commission. Provided that if a post in a body of the Government of Nepal becomes unnecessary and the post is abolished, and no post of that service, group, sub-group, and grade is vacant in any other body and does not become vacant for up to one year, and it is necessary to change the service, group, or sub-group of the employee working in such post, nothing mentioned in this section shall be deemed to prevent the Government of Nepal from grouping the employee into another service, group, or sub-group after consulting the Public Service Commission. Chapter- 5 Salary Allowance, Festival Expense and Other Facilities 27. Salary Allowance: (1) A civil servant shall receive salary allowance from the day of assuming office in his/her post. Added by the Second Amendment. (1a) For reviewing the salary, allowance, and other facilities of civil servants, there shall be a Salary Allowance Review Committee as follows: (a) Chief Secretary of the Government of Nepal ? Chairperson (b) Secretary, Ministry of Finance ? Member (c) Secretary, Ministry of General Administration ? Member Added by the Second Amendment. (1b) The Salary Allowance Review Committee shall, each year, determine the dearness allowance based on the consumer price index and recommend it to the Government of Nepal. The Committee shall, every three years, review the salary, allowance, and other facilities based on the revenue

growth rate, total number of posts, and the dearness allowance provided in the previous three years based on the price index. The Committee may determine its own procedures. Added by the Second Amendment. (1c) The Committee under sub-section (1a) may form sub-committees as needed and invite experts or stakeholders from relevant fields to the committee for suggestions.

Added by the Second Amendment. (1d) The secretariat of the Committee under sub-section (1a) shall be the Ministry of General Administration. Amended by the Second Amendment. (2) Based on the recommendation of the Committee under sub-section (1a), the Government of Nepal may provide up to seventy-five percent of the annually increasing consumer price index amount to civil servants as an allowance each year. In the year when the allowance amount so provided reaches twenty-five percent or more of the initial salary scale, twenty-five percent of the amount may be adjusted into the salary scale, and the remaining amount may be provided as an allowance. Amended by the First Amendment. (3) Except in the circumstances mentioned in section 29 or 60, after the commencement of this Act, every civil servant shall, after completing one year of service, receive a salary increment of the amount as prescribed. Amended by the Act to Amend Some Nepal Acts, 2075. Provided that when prescribing such salary increment, the number of increments shall be adjusted so that the amount already received by the concerned employee does not decrease. If a salary increment of a civil servant is withheld, the concerned officer must state in writing from which date such increment shall be released. 28. Entitlement to Drawn Salary Allowance: (1) Every month after payment, a civil servant shall receive salary Amended by the First Amendment. and allowance, and also allowance if entitled. (2) A civil servant who has drawn salary Amended by the First Amendment. and allowance, if entitled to allowance, shall receive it even if the employee ceases to be in civil service for any reason. (3) No salary of a civil servant shall be deducted except as provided in this Act or the rules made under this Act. (4) The salary payable to a civil servant shall not be withheld while the employee is working or on leave. Amended by the Second Amendment. 28a. Performance Incentive Fund: (1) The Government of Nepal may establish a Performance Incentive Fund to incentivize civil servants based on their performance, work results, and achieved outcomes. (2) The amount in the Fund under sub-section (1), its operation, management, and other provisions shall be as prescribed. 29.

Crossing Efficiency Bar: No civil servant shall be considered to have crossed the efficiency bar unless the secretary of the concerned ministry in the case of a gazetted employee, and the authority in the case of a non-gazetted employee, states in writing that the civil servant is eligible to cross the efficiency bar. 30. Salary Payable in Case of Suspension: (1) If a civil servant is suspended in connection with government work or as a result of action taken on behalf of the Government of Nepal, the employee shall receive only half of his/her salary during the period of suspension. Provided that if the employee is acquitted as the alleged charge is not proven, if half salary was received during the suspension period, after deducting that, the full salary (including any increment) shall be paid; if not received, full salary shall be paid. If found guilty, no remaining salary and allowance from the date of suspension shall be paid. (2) If a civil servant remains suspended for any reason other than those mentioned in sub-section (1), the employee shall not receive salary for such period of suspension. 31. Deposit of Amount in Employees' Provident Fund: Ten percent of the monthly salary of civil servants shall be deducted, and the Government of Nepal shall add an equal amount (one hundred percent) and deposit it in the Employees' Provident Fund. Amended by the Second Amendment. 32. Festival Expense and Other Facilities: (1) A civil servant shall receive an amount equal to one month's salary drawn by the employee each year as festival expense for festivals celebrated according to his/her religion, culture, and tradition. Such amount may be received by the employee once in a fiscal year on the occasion of the main festival celebrated according to his/her religion, culture, and tradition. (2) An employee retired with a pension shall be given an amount equal to one month's pension received by the employee as festival expense. (3)

Provisions relating to medical expenses, disability pension, facilities for disablement, extraordinary family pension and gratuity, educational allowance, child pension, childcare allowance, or other facilities receivable by a civil servant shall be as prescribed.

Chapter- 6

Retirement, Grat

(2) Notwithstanding anything contained in sub-section (1), if a person entitled to receive pension under section 37 goes missing before receiving the pension, the full amount of pension shall be provided to his/her family for up to seven years, and if he/she goes missing after starting to receive the pension, for the remaining period up to seven years, and after that period, family pension shall be provided to the spouse at half the rate of pension for life.

(3) If an employee who had gone missing is later found, and if the gratuity under section 36 has not already been paid, such gratuity or the amount of pension receivable under section 37 shall be given to him/her from the date he/she comes to claim it. Provided that, the person later found shall not be entitled to claim the gratuity, pension or family pension amount already paid under sub-section (1) or (2). Amended by the Pension Fund Act, 2075.39B. Special provision relating to contributory pension fund: (1) In the case of employees appointed to the civil service after the commencement of this Act, the provisions according to the prevalent law relating to the contributory pension system shall apply.

(2) In the case of civil servants to whom the contributory pension system applies pursuant to sub-section (1), the provisions of sections 35, 36, 37, 37A, 38, 39, 39A and 39C shall not apply. Inserted by the Second Amendment.39C. Special provision relating to family pension: (1) Notwithstanding anything contained elsewhere in this Act, if a civil servant dies due to conflict in the course of performing duties assigned by the Government of Nepal, and if the service period of such employee is less than twenty years, the remaining period shall be added and pension under this Act shall be provided to his/her spouse for life.

(2) A person receiving pension under sub-section (1) shall not be entitled to family pension or gratuity under section 39.

(3) If a person receiving pension under this section remarries, he/she shall not receive such pension.

(4) When the salary of a serving civil servant is increased, two-thirds of the amount of increase in the initial salary figure shall also be added to the family pension amount being received by a person under this section.

(5) If the person receiving pension under this section dies or remarries, if the deceased employee has minor children, such children shall receive the amount of such pension as prescribed until they attain majority. Inserted by the Second Amendment.39D. Special financial facility: If a civil servant dies while in service, a lump sum of one hundred and fifty thousand rupees shall be provided to his/her family. 40.

Mention of salary: (1) Wherever salary is mentioned in this Chapter and Chapter 5, it shall mean the current salary amount (including salary increment) of the concerned civil servant. (2) For the purposes of sections 36 and 37, "last salary" shall mean the salary of the concerned employee at the time of retirement, and if a civil servant was on extraordinary leave or suspension at the time of such retirement, full salary shall be calculated even for such period. Amended by the Second Amendment.40A. Provision relating to insurance facility: (1) The Government of Nepal shall establish a term life insurance fund for the insurance of civil servants. (2) Two hundred rupees shall be deducted from the monthly salary of each civil servant and deposited in the fund under sub-section (1), and the Government of Nepal shall add an equal amount and

provide a twenty-year term life insurance policy for a sum assured of one hundred thousand rupees. Upon the employee's retirement from service, the sum assured and bonus shall be paid to him/her from the amount accumulated in the insurance fund. (3) If a civil servant dies before completing the twenty-year period from the start of deductions under sub-section (2), his/her family shall receive one hundred thousand rupees. If a civil servant is compulsorily retired from service, the amount as follows shall be provided:- (a) If deductions have been made for less than one year, ten thousand rupees, (b) If deductions have been made for one to five years, twenty-five thousand rupees, (c) If deductions have been made for five to ten years, fifty thousand rupees, (d) If deductions have been made for ten to fifteen years, seventy-five thousand rupees, (e) If deductions have been made for up to twenty years, one hundred thousand rupees. Provided that, if the amount deposited by him/her along with interest and dividend exceeds the aforementioned amount, an amount equal to that shall be provided from the said fund. (4) If a civil servant leaves service in any manner other than compulsory retirement before completing the twenty-year period from the start of depositing amounts under sub-section (2), such employee shall be provided an amount equal to the surrender value. (5) Notwithstanding anything contained in sub-sections (2) and (3), an employee retiring from the civil service may continue the term life insurance in a manner that the amount deposited matures within twenty years or less.

Provided that, the Government of Nepal shall not bear any cost thereof.

(6) Other provisions relating to the term life insurance fund shall be as prescribed. Inserted by the First Amendment.40B. Provision relating to study, training or study tour: (1) The concerned ministry, commission or secretariat shall, in order to send its subordinate employees for study, training or study tour, prepare a related statement each year and send it to the Ministry of General Administration.

(2) After receiving the statement pursuant to sub-section (1), the Ministry of General Administration shall specify the number on a thematic basis for study, training or study tour and send the details thereof to the National Planning Commission. Amended by the Fourth Amendment.(3) For the equitable distribution of opportunities for study, training or study tour received in the name of the Government of Nepal by the National Planning Commission and other government bodies to all services including the Nepal Legislature-Parliament Service, Nepal Health Service, there shall be a committee as follows:

- (a) Chief Secretary of the Government of Nepal ? Chairperson
- (b) Secretary of the Ministry of Finance ? Member
- (c) Secretary of the Ministry of Law, Justice, Constituent Assembly and Parliamentary Affairs ? Member
- (d) Secretary of the National Planning Commission ? Member
- (e) Secretary of the Ministry of General Administration ? Member Secretary

Inserted by the Fourth Amendment.(3A) An annual report relating to the work performed regarding the distribution of opportunities for study, training or study tour received pursuant to sub-section (3) shall be submitted to the State Affairs Committee of the Legislature-Parliament.

(4) The distribution of opportunities according to the decision of the committee under sub-section (3) shall be done by the Ministry of General Administration. Inserted by the Fourth Amendment.(4A) An employee who has gone for foreign study, training or study tour under this section shall, after completing such study, training or study tour, prepare a related report and submit it to his/her office.

(5) The bases for nomination for study, training or study tour shall be as prescribed. Inserted by the First Amendment.40C.

Period of service required after completion of study, training or study tour: A civil servant who goes for study, training or study tour on the nomination of the Government of Nepal shall, after completing such study, training or study tour, compulsorily serve in the ministry or office where he/she was working before going for the study, training or study tour, subject to this Act, for the following period: Duration of study, training or study tour Minimum period of service required (a) Up to three months One year (b) From three months to six months One and a half years (c) From six months to nine months Two years (d) From nine months to one year Three years (e) From one year to two years Four years (f) From two years to three years Five years (g) From three years to four years Seven years (h) From four years to five years Eight years Amended by the Second Amendment.40D. Bond to be executed: (1) Before going for study, training or study tour on government nomination, any civil servant shall execute a bond agreeing to return after completing such study, training or study tour and serve for the period under section 40C. (2) If a civil servant who has gone on government nomination under sub-section (1) does not return to serve after completing the study, training or study tour, or does not complete the required service period under section 40C, and does not deposit the salary, allowance received by him/her during the study, training or study tour period, the scholarship amount received by him/her, and other amounts mentioned in the bond within the prescribed period, it shall be recovered as government dues. (3) A civil servant who goes on private initiative with prior approval of the competent authority shall, after completing the study, training or study tour, execute a bond to serve for a period equal to the time spent on the study, training or study tour. (4) If a civil servant who has gone for study under sub-sections (1) and (3) does not return to serve after completing the study, training or study tour, or does not complete the service period, the period of such study, training or study tour shall not be counted towards his/her service period. (5) Notwithstanding anything contained elsewhere in this section, if an employee who has gone for study, training or study tour is unable to complete the service period under section 40C due to compulsory retirement or death, no amount shall be recovered from him/her or his/her family. Chapter 7 Conduct 41.

Punctuality and regularity: A civil servant shall attend office regularly at the time fixed by the Government of Nepal and shall not, as far as possible, be absent from work without prior leave approval. 42. Discipline and obedience: (1) A civil servant shall remain disciplined and perform his/her duties with honesty and promptness. (2) A civil servant shall promptly carry out the orders given by a superior officer on matters relating to government work. (3) A civil servant shall show due respect to all employees senior to him/her and behave properly towards employees junior to him/her. 43. Not to exert political or undesirable influence: No civil servant shall, with the intention of achieving personal gains in matters relating to his/her service, exert or attempt to exert any political or undesirable influence over other employees. 44. Not to participate in politics: A civil servant shall not participate in politics. 45. Not to criticise the government: (1) No civil servant shall, in a manner contrary to the policy of the Government of Nepal or likely to disrupt the mutual relationship between the Government of Nepal and the people or relations with any foreign state, publish any article, give any news to the press, broadcast any speech via radio or television etc., deliver any public speech, or publish any statement, under his/her real or assumed name or anonymously. (2) Notwithstanding anything contained in sub-section (1), there shall be no bar to publishing or broadcasting articles in a manner not contrary to the prevalent law and the policy of the Government of Nepal. 46. Prohibition on publishing news relating to government work: No civil servant shall, without authorisation by the Government of Nepal, directly or indirectly give or disclose to any other unauthorised employee or non-governmental person or press, any confidential matter or matter prohibited by law that has come to his/her knowledge while performing government duties, or any paper or news he/she has written or collected. This prohibition shall continue to apply even to a person who has left government service for any reason. 47. Prohibition on receiving

donations, gifts, subscriptions etc. and taking loans: (1) No civil servant shall, without prior approval of the Government of Nepal, in a manner that may in any way affect government work, himself/herself or through any member of his/her family, accept any kind of donation, charity, gift or present, or solicit subscriptions, or take loans from a person related to government work. (2) If a civil servant receives any gift from any foreign government or any representative of a foreign government, he/she shall inform the Government of Nepal thereof and act as directed. 48.

Provided that, there shall be no bar to exercising his/her right to vote in accordance with prevalent law without disclosing whom he/she has voted for or intends to vote for. Inserted by the Fourth Amendment.49A. Not to take up employment or service elsewhere: (1) A civil servant shall not take up any kind of employment elsewhere, or perform work providing service as a consultant, advisor, expert or in any capacity with a view to receiving financial benefit or any facility.

(2) Notwithstanding anything contained in sub-section (1), the following acts shall not be deemed to be obstructed:

- (a) Providing service to someone in the course of performing official duties or carrying out tasks assigned or imposed by an authorised officer,
- (b) Rendering any service to or doing any task assigned by the relevant educational institution while studying in a domestic or foreign educational institution on study leave under prevalent law,
- (c) Serving in a relevant body where leave or deputation is approved by the competent authority, finding the service of regional or international organisations of which Nepal is a member state, or national or international educational, academic or research organisations, to be useful for the concerned service, group, subgroup,
- (d) Participating in, delivering lectures at, or presenting working papers at programs situated in Nepal or abroad, with the approval of the competent authority, in a manner not contrary to the policy of the Government of Nepal,
- (e) Conducting training or research at educational, academic or training institutions outside office hours, with prior approval of the competent authority,
- (f) Conducting training-related work or research at a training institution operated by the Government of Nepal or under full or partial ownership or control of the Government of Nepal, without hindering office work,
- (g) Rendering service for human welfare, charity or social well-being, without hindering office work,
- (h) Becoming a member of his/her professional organisation or any other social institution, without receiving financial benefit or any facility, without hindering office work, and without harming the interest of the Government of Nepal.

Explanation: For the purposes of this clause, "social institution" shall mean social associations and institutions based on tradition and community, active in society in the course of fulfilling social needs, and the term also denotes institutions related to literature, art, culture, sports, music, science, religion or any other similar genre or field, registered under prevalent law.

(3) Notwithstanding anything contained elsewhere in this section, an employee involved in the process of competitive examinations conducted by the Public Service Commission or public bodies for recruitment shall not provide training in such training programs, and a person who has provided training in such training program shall not be involved in the process of such examination conducted within one year thereafter. Inserted by the Fourth Amendment.49B. Not to obtain permanent residency: A civil servant shall not obtain permanent residency or apply to obtain such residency. 50. Prohibition on demonstrations and strikes: A civil servant shall not demonstrate, participate in strikes, or incite others to do so with the intention of, in a manner that impairs the sovereignty and integrity of Nepal Deleted by the Republic Strengthening and Some Nepal

Laws Amendment Act, 2066., undermines the peace, security, foreign relations and public dignity of the country, or contempt of court, or creates discord among people of different castes, ethnicities, religions, classes, regions and communities, or spreads communal ill-will, or abets any crime. 51. Prohibition on strikes, obstruction and siege: A civil servant shall not go on strike or pen-down, or exert pressure causing physical or mental harassment, or incite others to do so, in a manner that obstructs or opposes the performance of duties determined by law of any office or officer. Amended by the Second Amendment. 52. Prohibition on representation: A civil servant shall not represent any other person or group except by submitting a petition himself/herself or through an agent to the concerned body or officer on matters where he/she feels aggrieved. Provided that, this section shall not be deemed to obstruct representation made on behalf of the official trade union of civil servants formed under sub-section (3) of section 53, and any act required to be done based on the official duties of a civil servant. Amended by the Second Amendment. 53.

Provision relating to trade union of civil servants: (1) Civil servants may form a trade union subject to this Act. (2) While forming a trade union under sub-section (1), the following provisions shall be complied with: (a) Civil servants of the gazetted third class or below, excluding gazetted employees who have to work as office chief, may form and become members of national-level civil service trade unions for their professional rights and interests. (b) The registration of trade unions of civil servants shall be with the Department of Labour and Employment Promotion. (3) The official trade union of civil servants shall be formed as follows: (a) An official trade union of civil servants may be formed comprising office bearers selected by the members of the trade unions of civil servants formed under sub-section (1). (b) The official trade union of civil servants may present its professional demands at the district level, departmental level and national level to the concerned bodies and engage in social dialogue and collective bargaining.

In the absence of the formation of an official trade union of civil servants, the trade union federations of civil servants formed under sub-section (1) may mutually agree and conduct collective bargaining.

(c) Other provisions relating to the official trade union of civil servants shall be as prescribed.

(4) The functions, duties and rights of the trade union of civil servants shall be as follows:

(a) It shall be the duty of the trade unions of civil servants formed under sub-sections (1) and (3) to provide creative suggestions and assistance to the Government of Nepal to protect and promote the rights and interests of employees and to make the civil service effective and dynamic.

(b) The trade union of civil servants may conduct creative and constructive activities such as meetings, training, workshops, etc.

(c) The trade union of civil servants shall have the right to form a federation, become its member, become a member of an international union or federation, and represent on behalf of its institution.

(5) The Government of Nepal may seek advice and suggestions from the official trade union of civil servants when making laws relating to the civil service.

(6) If a request for transfer is made by the office bearers of national-level trade unions formed under sub-sections (1) and (3) and the official trade union to a suitable place within their working area, the competent authority shall arrange for a transfer accordingly.

(7) Central office bearers and members of national-level trade unions formed under sub-sections (1) and (3) may be provided with deputation for a maximum of thirty days in a year to participate in domestic and foreign seminars, workshops, conferences, organisational work, etc., related to the union, without financial liability to the Government of Nepal.

(8) The registration of the trade union of civil servants, related conditions, procedures and other arrangements shall be as prescribed. 54. Property details: A civil servant shall furnish details of his/her property. Inserted by the Second Amendment.54A. Not to torture: (1) A civil servant shall not torture anyone. (2) A civil servant shall not commit or cause to commit acts relating to sexual harassment and domestic violence. Inserted by the Second Amendment.54B. Other conduct: (1) A civil servant shall behave courteously towards everyone while working in his/her office. (2) A civil servant shall bear the responsibilities arising according to his/her office and post with dignity and perform work impartially, cleanly, and swiftly. (3) A civil servant shall not use or utilise any government property for domestic purposes. (4) A civil servant shall not engage any government employee appointed to receive salary and allowances from government revenue in his/her domestic work, except for office work. Inserted by the Second Amendment.54C.

Behaviour towards service recipients: (1) A civil servant shall behave respectfully towards service recipients related to his/her work. (2) Clear information regarding the subject, procedure and time required for completing the work related to the service recipient shall be provided to the service recipient in a timely manner. 55. To observe conduct according to one's service and post: Every civil servant shall also observe conduct befitting his/her service and post. Inserted by the First Amendment.55A. May give warning: If a civil servant fails to observe punctuality, fails to obey the order given by a superior employee on matters relating to government work, or commits negligence or delay in office-related work, the concerned supervisor may give a warning to such employee stating the reasons, and a record thereof shall be kept in the personal file of the concerned employee. Chapter 8 Security of Service 56. Security of service of civil servant: Except for the following civil servants, no civil servant shall be removed or dismissed from the civil service without giving a reasonable opportunity to submit a defence: (a) Convicted by a court on a criminal charge involving moral turpitude, (b) Holding a temporary post, (c) Having sufficient grounds that the whereabouts are unknown or contact is not possible. Inserted by the Second Amendment.(d) Convicted by a court on a charge of corruption. 57.

Defence of civil servant: (1) No suit may be instituted against a civil servant in respect of any government act done by him/her in the belief that it was in the performance of his/her official duties, without following the procedure under sub-section (2). (2) For instituting a suit against a civil servant under sub-section (1), permission of the competent authority must be obtained in the case of a criminal case, and in the case of a civil case, the following must have occurred: (a) Two months have elapsed after delivering a written notice stating the cause of action and the name and address of the plaintiff and his/her attorney, if any, to the competent authority or to the concerned civil servant, or sending it by registered post, and a copy thereof has been submitted to the Government of Nepal. (b) The suit has been filed within eight months from the date of the cause of action. (3) In respect of any act done by a civil servant while in service in the course of performing his/her official duties, no suit may be instituted against him/her even after the termination of service, without the approval of the Government of Nepal. (4) If approval is given by the Government of Nepal to institute a suit under sub-section (3), the Government of Nepal shall defend him/her. 58. Security of service conditions: The service conditions relating to salary, gratuity, pension and other facilities in force at the time of appointment of any civil servant shall not be altered to his/her detriment without his/her consent. If any subsequent amendment adversely affects the aforesaid service conditions of any civil servant who was in service before such amendment, such amended provision shall not apply to him/her without his/her written consent agreeing to be governed by such amended provision. Chapter 9 Punishment and Appeal 59. Punishment: For just and sufficient cause, a civil servant may be given the following Amended by the First

Amendment. departmental punishment: Amended by the Second Amendment. (a) Ordinary punishment: (1) Issuance of a warning, (2) Withholding promotion for up to two years or withholding up to two salary increments, (3) Withholding promotion for two to five years or withholding two to five salary increments. (b) Special punishment: (1) Removal from service without disqualifying him/her for future government service, (2) Dismissal from service disqualifying him/her for future government service. Amended by the Second Amendment. 60.

Issuance of warning or withholding up to two salary increments or promotion for up to two years: In any of the following circumstances, a civil servant may be punished by issuance of a warning or withholding up to two salary increments or withholding promotion for up to two years: (a) If the work performed by him/her is not satisfactory, (b) If handover/takeover is not done in accordance with prevalent law, (c) If he/she receives a written warning twice in one year under section 55A, (d) If he/she fails to responsibly fulfil the official duties assigned by this Act or prevalent law, (e) If he/she fails to comply with the instruction given by a superior officer regarding repeated neglect of the grievances and complaints of service recipients, (f) If an officer responsible for implementing or causing to implement job descriptions fails to do so. Inserted by the Second Amendment. 60A. Withholding promotion for two to five years or withholding two to five salary increments: In any of the following circumstances, a civil servant may be punished by withholding promotion for two to five years or withholding two to five salary increments: (a) If he/she commits an act of indiscipline, (b) If he/she violates matters relating to conduct mentioned in this Act and the rules made under this Act, (c) If he/she fails to settle advances in accordance with prevalent law, (d) If he/she fails to comply with the instruction given regarding irregularities observed from management audit, (e) If he/she remains absent from office continuously without prior approval, Inserted by the Fourth Amendment. (f) If he/she takes up any kind of employment elsewhere, or performs work providing service as a consultant, advisor, expert or in any capacity with a view to receiving financial benefit or any facility, except in the circumstances under sub-section (2) of section 49A. 61.

Removal or dismissal from service: (1) In any of the following circumstances, a civil servant may be removed from service without disqualifying him/her for future government service: (a) If the civil servant is unable to perform the work or responsibility of his/her post due to incompetence, (b) If he/she repeatedly violates conduct matters, (c) If he/she repeatedly consumes intoxicating substances during office hours, (d) If he/she repeatedly commits acts of indiscipline, (e) If he/she participates in politics, (f) If he/she repeatedly neglects the responsibility of his/her post, (g) If he/she remains absent from his/her office continuously for ninety days without approved leave, Inserted by the Fourth Amendment. (h) If a civil servant who has gone for foreign study, training or study tour does not report to the concerned office within thirty days from the date of completion of such study, training or study tour, except where leave has been approved for reasonable cause, (i) Deleted by the Some Nepal Acts Amendment Act, 2072 Amended by the Fourth Amendment. (2) Notwithstanding anything contained in clause (b) of sub-section (1) and clause (b) of section 60A, in any of the following circumstances, a civil servant shall be dismissed from service disqualifying him/her for future government service: (a) If convicted by a court on a criminal charge involving moral turpitude, (b) If he/she commits corruption, (c) If he/she obtains permanent residency or applies for it, (d) If it is proved that he/she falsified citizenship, age or qualification with the intention of being appointed to or remaining in the civil service. Inserted by the Second Amendment. 61A. Special provision relating to departmental proceedings and punishment: (1) Notwithstanding anything contained elsewhere in this Act, if the Commission for the Investigation of Abuse of Authority under the Commission for the Investigation of Abuse of Authority Act, 2048, or the concerned body under prevalent law, writes to take departmental action against any civil servant, departmental punishment shall be imposed accordingly after completing the necessary procedure. (2)

Notwithstanding anything contained elsewhere in this Act, a civil servant who remains absent from his/her office without leave contrary to section 41 may be marked absent and his/her salary may be deducted for the period of absence. The period of such absence shall not be counted towards service period. (3) Notwithstanding anything contained elsewhere in this Act, an employee who remains absent for a continuous period exceeding ninety days without approved leave shall not be marked absent and reinstated. If reinstated, the officer who reinstated him/her shall be subject to departmental action under section 60, and the salary and allowances drawn by the employee so reinstated shall be recovered from the officer who reinstated him/her as government dues. Inserted by the Fourth Amendment.61B.

Details to be submitted by self-declaration: (1) Every employee who has obtained permanent residency or applied for such residency before the commencement of this section shall, within thirty days from the date of commencement of this section, make a self-declaration and submit the following details to the office where he/she is working: (a) His/her name, surname, service, group, sub-group and current post, (b) If he/she has obtained permanent residency, the date thereof, or if he/she has applied for such residency, the date thereof, (c) The name of the concerned foreign country, (d) Whether he/she is willing to renounce the permanent residency obtained or withdraw the application made for such residency. (2) If the spouse of a civil servant living in joint family has obtained permanent residency, the concerned civil servant shall, within thirty days from the date of commencement of this section, submit the details under sub-section (1) to the office where he/she is working. (3) After receiving the details under sub-section (1) or (2), the concerned office shall, within fifteen days from the date of receipt thereof, send them to the Ministry of General Administration. Inserted by the Fourth Amendment.61C.

Information may be given: (1) If any person obtains information that a civil servant has obtained permanent residency contrary to section 49B, such person may give that information to the office where the concerned civil servant is working or to the Ministry of General Administration. (2) If information under sub-section (1) is received at any office, the concerned office shall, within seven days from the date of receipt of such information, forward it to the Ministry of General Administration. (3) If information is received from sub-section (1) or (2) or from any other source that a civil servant has obtained permanent residency or applied for it, the Ministry of General Administration shall, after the expiry of the period under sub-section (1) of section 61B, write to the authority empowered to impose departmental punishment to investigate in respect of such civil servant. (4) Upon receiving a letter under sub-section (3), the authority empowered to impose departmental punishment shall commence investigation within three days in respect of such civil servant and shall inform the Ministry of General Administration of its findings as soon as possible. (5) While investigating under sub-section (4), the authority empowered to impose departmental punishment may request information or assistance from the Ministry of General Administration or any other government body, and it shall be the duty of the concerned body to provide such information or assistance. (6) If, during investigation and action under this section, it is found that a civil servant has obtained permanent residency or applied for it, he/she shall be punished under this Act within three months, following the procedure under prevalent law, and information thereof shall be given to the Ministry of General Administration within fifteen days. Inserted by the Fourth Amendment.61D.

Not to be punished: (1) Notwithstanding anything contained elsewhere in this Act, if a civil servant who, immediately before the commencement of this section, was engaged in any other type of employment or service elsewhere with prior approval under clause (c) of sub-section (1) of section 48 as it then stood, submits an application with proof of leaving such employment or service within thirty days from the date of commencement of this section, he/she shall not be punished under this Act. (2) Notwithstanding anything

contained elsewhere in this Act, if a civil servant who had obtained permanent residency or applied for it before the commencement of this section, admits to that fact and submits an application with proof of renouncing the permanent residency obtained or making a written request to the concerned country to withdraw the application for such residency, within sixty days from the date of commencement of this section, such employee shall not be punished under this Act. Amended by the Second Amendment.62. Authority to impose departmental punishment: (1) The authority to order punishment under clause (b) of section 59 to a civil servant shall be as follows: (a) For a civil servant working in the post of gazetted first class or above, the Government of Nepal, (b) For a civil servant of the gazetted second and third class, the officer of special class of the body where he/she is working, (c) For non-gazetted civil servants, the departmental chief of the office where he/she is working or the gazetted office chief. (2) The authority to order punishment under clause (a) of section 59 shall be as prescribed. Amended by the Second Amendment.63. Power to delegate authority to impose departmental punishment: The Government of Nepal may, by publishing a notification in the Nepal Gazette, delegate the authority of any officer empowered to order punishment under section 62 to be exercised by an officer specified in the same notification for a specified period. 64. Suspension: (1) If an investigation has to be conducted into any charge mentioned in section 61 against a civil servant, the authority empowered to order punishment may suspend such employee until the investigation is completed.

Provided that, suspension shall not ordinarily be made unless the following circumstances exist: (a) If there is a possibility that allowing him/her to work in the post without suspension may lead to the collection of false evidence or the destruction of evidence against him/her, or (b) If there is a possibility that allowing him/her to work in the post without suspension may cause government loss or damage. (2) The authority empowered to order punishment may, along with serving a notice of charge of removal or dismissal from service to a civil servant, also suspend him/her. (3) When a civil servant is suspended under sub-section (1), the suspension shall ordinarily not exceed two months. The action against the employee shall be concluded within that period. If, due to extraordinary circumstances, the action cannot be concluded within that period and the suspension period needs to be extended, the suspension period may be extended for up to one month with prior approval of the competent authority. (4) A civil servant arrested and detained on a criminal charge involving moral turpitude shall be deemed to be automatically suspended for the entire period of such detention. 65. Termination of suspension: If a civil servant is reinstated in his/her post Inserted by the First Amendment. or the period under sub-section (3) of section 64 expires, or he/she is removed or dismissed from service, his/her suspension shall end. 66. Opportunity to submit defence: (1) Before ordering punishment to a civil servant, the authority empowered to impose departmental punishment shall give the employee an opportunity to submit his/her defence within a reasonable period, stating the reasons for the proposed action. While giving such opportunity, the charges against him/her shall be clearly specified, and it shall also be stated on which facts and reasons each charge is based. In such case, the concerned employee shall also submit his/her defence within the period, and the concerned authority shall seriously consider the defence so submitted. (2) The authority empowered to order departmental punishment may, if deemed necessary, cause an investigation to be conducted by himself/herself or by any other officer. The investigating officer shall follow the prescribed procedure. 67.

Punishment proposal to be made before ordering special punishment: Before ordering special punishment, if the authority empowered to order departmental punishment finds that no defence has been submitted within the period given for submitting defence under section 66, or that the defence submitted is not satisfactory, he/she shall give a reasonable period to such civil servant to show cause why the proposed punishment should not be imposed. 68. Consultation with the Public Service Commission: In the course of departmental proceedings, if the defence given by the concerned civil servant under section 66 or the explanation given

under section 67 is not satisfactory and it appears that the employee should be punished, the authority empowered to order departmental punishment shall propose the punishment to be given to such employee and consult the Public Service Commission. 69. 70. Effect on decision not affected: Minor procedural defects that do not materially affect the proceedings conducted by an authorised officer under this Act or the rules made under this Act in respect of a civil servant shall not affect the decision. Chapter 10 Miscellaneous 71. Leave to be received by civil servants: Civil servants shall receive the following leaves as prescribed: (a) Casual and festival leave, (b) Home leave, (c) Sick leave, (d) Maternity leave, Inserted by the Second Amendment.(d1) Maternity care leave (e) Bereavement leave, (f) Study leave, (g) Extraordinary leave. Inserted by the Second Amendment.</ (?) ?????????? ?????????????????? ??? ?????? ?????????? ??? ?????????? ?????????? ?????????? ?????????? ????? ?????? ?????? ??? ?????? ?? ?????????? ??? ?????? ?????? ?????????? ????? ?????? ? ?. ?????? ?????????? ?? ?????????? ?????? ??, ?????? ?????????? ?????????? ?????? ?????????? :- ?????????????? ????????? ?? ?????????? ?????????? ?????????? ?. ?????? ?????????? ?? ?????????? ?????????? ??, ?????? ?????????? ?????????????? ?????? ??????????:- ?????????, ?????????, ??? ?????????? ?????????????? ??????????????, ?????????, ??????, ?????????????? ??? ?????????? ?????????? ?????????????? ?? ?????????, ?????? ??? ?????????????? ?????????????? ?????????????? ?? ?????? ?????????, ??????, ??? ?????????? ?????????? ?????????????? ?